

24TRCV04039 24TRCV04039

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-03

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Case Number: 24TRCV04039 Hearing Date: August 3, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

DENICE DUARTE

;

Plaintiff,

vs.

villa nova apartments, llc

, et al.;

Defendants.

Case

No.:

24TRCV04039

Hearing

Date:

August
3, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

defendants'

motion to consolidate actions

MOVING PARTY: Defendants, Carolyn Marie Ihrig
and James Zicaro, as Trustees of the Zicaro Exemption Trust, and Carolyn Marie
Ihrig, as Trustee of the Zicaro Survivor's Trust

RESPONDING PARTY: No opposition.

(1) Defendants'

Motion to Consolidate Actions is DENIED

pursuant to Code of Civil Procedure section

1048 and California Rules of Court, rule 3.350(a).

The Court considers the moving
papers filed on May 7, 2026. To date, no
opposition brief has been filed.

BACKGROUND

Factual Background

On December 2, 2024, at 9:23
a.m., plaintiff Denice Duarte ("Plaintiff") filed the Complaint against
defendants Villa Nova Apartments, LLC, Villa Nova Apartments, a business
entity, form unknown, Doe Property Management Company, Nancy C. Zicaro, as an
individual and Trustee of the Zicaro Survivor's Trust and the Zicaro Exemption
Trust, and DOES 1 through 20. The

Complaint includes one cause of action for (1) Negligence.

On June 25, 2025, defendants Carolyn Marie Ihrig and James Zicaro, as Trustees of the Zicaro Exemption Trust, and Carolyn Marie Ihrig, as Trustee of the Zicaro Survivor's Trust ("Defendants") filed the Notice of Related Case, notifying the Court that Southern California Gas Company v. Carolyn Zicaro Ihrig, as Trustee of the Zicaro Survivor's Trust and of the Zicaro Exemption Trust, Case No. 24TRCV04059, is a related case.

On May 5, 2026, the Court signed Plaintiff's amendments to the complaint. One amendment replaced the name of Nancy C. Zicaro, Trustee of the Zicaro Survivor's Trust, with Carolyn Marie Ihrig, Trustee of the Zicaro Survivor's Trust. Additionally, the other amendment substituted Nancy C. Zicaro, Trustee of the Zicaro Exemption Trust, with Carolyn Marie Ihrig and James Zicaro, Trustees of the Zicaro Exemption Trust.

On April 6, 2026, Defendants filed another Notice of Related Case, notifying the Court that Southern California Gas Company v. Carolyn Zicaro Ihrig, as Trustee of the Zicaro Survivor's Trust and of the Zicaro Exemption Trust, Case No. 24TRCV04059, is a related case.

Related Case

On December 2, 2024, at 4:46 p.m., plaintiff Southern California Gas Company filed a complaint against defendants Carolyn Zicaro Ihrig, as trustee of the Zicaro Survivor's Trust and the Zicaro Exemption Trust, and DOES 1 through 50. The complaint includes one cause of action for (1) Premises Liability/Negligence.

On April 6, 2026, Ihrig filed a Notice of Related Case, notifying the Court that Denice Duarte v. Villa Nova Apartments, LLC, et al., Case No. 24TRCV04039, is a related case.

LEGAL STANDARD

California Rules of Court,

rule 3.350(a) states:

(1) A notice of motion to consolidate must:

(A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;

(B) Contain the captions of all the cases sought to be consolidated, with the lowest-numbered case shown first; and

(C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

(A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest-numbered case;

(B) Must be served on all attorneys of record and all non-represented parties in all of the cases sought to be consolidated; and

(C) Must have a proof of service filed as part of the motion.

(Cal. Rules of Court, rule 3.350(a).)

Additionally, Code of Civil

Procedure section 1048, subdivision (a), states: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The decision to grant or deny a motion to consolidate is within the trial court's sound discretion and will only be reversed if there is a clear showing of abuse of that discretion. (See *Fellner v. Steinbaum* (1955) 132 Cal.App.2d 509, 511.)

DISCUSSION

In accordance with California Rules of Court, rule 3.350(a)(1), Defendants have: (A) identified all named parties and their respective attorneys of record in both cases; and (B) provided the captions of both cases to be consolidated, listing the lowest-numbered case first. (Cal. Rules of Court, rule 3.350(a)(1)(A)-(B).)

Furthermore, in accordance with California Rules of Court, rule 3.350(a)(2), Defendants' motion complied with the following conditions: (A) the memorandums, declarations, and other supporting documents were filed in the lowest-numbered case; (B) the motion has been served on all attorneys of record; and (C) a proof of service is attached and has been filed as part of the motion. (Cal. Rules of Court, rule 3.350(a)(2)(A)-(C).)

Under Code of Civil Procedure section 1048, this Court finds that Defendants' motion demonstrates a common question of law or fact that is before the Court. Both cases arise from the same incident that occurred on December 3, 2022, and both are filed against Carolyn Ihrig, as trustee of the Zicaro Survivor's Trust and the Zicaro Exemption Trust. (Motion, p. 4:5-10; Declaration of El Mahdi Young, ¶¶ 2-5.)

However, Defendants failed to file the notice of this motion under Case No. 24TRCV04059. (Cal. Rules of Court, rule 3.350(a)(1)(C).)

Accordingly, Defendants' motion is DENIED.

ORDERS

1) Defendants' Motion to Consolidate Actions is DENIED.

2) Defendants

are ordered to provide notice of this Court's ruling in both Case Nos. 24TRCV04039
and 24TRCV04059.

IT IS SO ORDERED.

DATED: August 3, 2026

Tamara

Hall

Judge

of the Superior Court